

THE PROTECTIONS INVOKED AND HELD

The legal protections named, dated, for the safety disclosures, the public statements about this union's officers, and the filings of September 9, 2026 · prepared September 9, 2026 · a lay summary, not legal advice · Attachment 3 of 4

This page names the protections for four things: the safety refusal, the disclosures at a DOE site, the public statements about this union's officers, and the filings begun September 9, 2026. It is a lay summary, not legal advice. Each is named with its date and its document. Plain statements first; citations at the bottom.

1. For the public statements about this union's officers — made since the publication of August 29, 2026; the law named in writing in this packet, September 9, 2026.

Section 101(a)(2) of the Labor-Management Reporting and Disclosure Act — the Bill of Rights of Members of Labor Organizations — guarantees the right “to express any views, arguments, or opinions.” The leading case, *Salzhandler v. Caputo*, holds that a union may not discipline a member for criticizing the conduct of union officers, and that constitutional provisions purporting to allow such discipline are unenforceable against that speech. And where a charge is intertwined with protected criticism, the discipline cannot stand (*Petramale v. Local No. 17*). Whether this Local can reach a withdrawn man at all is a separate question: the LMRDA's definition of “member” excludes one who has voluntarily withdrawn, and the Supreme Court has held a union's power over someone who has left it sharply limited (*Pattern Makers' League v. NLRB*). Those authorities concern protection for member speech. They do not themselves resolve the legal or constitutional treatment of the officer's conduct reproduced in Attachment 2.

2. For the safety refusal — invoked in writing January 23, 2025.

The written Refusal to Perform Unsafe Work of January 23, 2025 cited the OSH Act's anti-retaliation provision (Section 11(c)), the respiratory-protection and protective-equipment standards (29 CFR 1910.134, 1910.132), and the regulation addressing an employee's refusal of hazardous work (29 CFR 1977.12) — invoked as such in the refusal itself. The written refusal also stood on Art. XXVII Par. 4 and Art. XXVIII Par. 4 of the National Elevator Bargaining Agreement, cited in this record for training, protective equipment, and the refusal procedure.

3. For the disclosures at a DOE site — filings of 2025–2026, each dated below; the coverage stated.

What was invoked, dated: the DOE Office of Inspector General complaint (narrative filed September 2–3, 2025; opened by the OIG as 25-0737-C and later closed — the closure letter is in the record), the NNSA Employee Concerns Program filing of September 5, 2026, and the site ethics-office disclosure of August 29, 2026. The frameworks that address such disclosures at a DOE site, under which protection may be claimed: worker safety under 10 CFR Part 851, the DOE Contractor Employee Protection Program under 10 CFR Part 708, and the federal contractor whistleblower statute, 41 U.S.C. §4712. Each filing is dated in the invocation documents themselves, held with the record.

4. For the filings begun against this Local — intake opened September 9, 2026.

Title VII of the Civil Rights Act and the Americans with Disabilities Act apply to labor organizations, and Both statutes contain anti-retaliation protections applicable to protected activity; the scope of those protections depends on the facts and applicable law. Both were invoked in the intake filings of September 9, 2026; intake proceedings are underway, and I intend to proceed through the agencies' formal charge

processes as applicable. A complaint under the state Act must be filed within 300 days of the last act (§28-1-10(A)). The New Mexico Human Rights Act reaches labor organizations expressly (NMSA 1978 §28-1-7(B)) and makes retaliation its own violation (§28-1-7(I)). Filings: EEOC Public Portal Inquiry No. 543-2026-01452; NM Human Rights Bureau intake Ref. No. 26-09-0983-E.

One protection, not invoked.

Against the charges in Attachment 1 — every count naming Kevin Mears — none of the protections above is raised. The open question of whether this union can reach a withdrawn man is left standing for the officer's defense to argue if it wishes; the author does not argue it for himself. He asked for those charges, and he will answer any notice served under the Constitution's charge procedure (Article XVIII, Section 4). This is a choice about argument, not a waiver: nothing here surrenders any right against retaliation, any right to a full and fair hearing, or any protection outside the four corners of that one charge — and the choice is his to revisit.

For any member who signs.

Preferring charges in writing is the Constitution's own procedure (Article XVIII, Sections 2 and 3). Federal law protects members against union discipline for exercising rights protected by the LMRDA (§609, 29 U.S.C. §529). This packet does not represent that every consequence associated with signing a charge is immunized; what signing may mean for you is a question for your own advisor.

What these have in common.

Every protection above sits on an act that is dated, in a document that still exists. That is what "held" means for each of them: a date, a document, a name.

Citations: LMRDA §101(a)(2), 29 U.S.C. §411(a)(2) · 29 U.S.C. §402(o) · Salzhandler v. Caputo, 316 F.2d 445 (2d Cir. 1963) · Petramale v. Local No. 17, Laborers, 736 F.2d 13 (2d Cir. 1984) · Pattern Makers' League v. NLRB, 473 U.S. 95 (1985) · OSH Act §11(c), 29 U.S.C. §660(c); 29 CFR 1910.132, 1910.134, 1977.12 · 10 CFR Parts 708 and 851; 41 U.S.C. §4712 · Title VII, 42 U.S.C. §2000e et seq.; ADA, 42 U.S.C. §12101 et seq.; NMSA 1978 §§28-1-7, 28-1-10(A) · NEBA Agreement (2022–2027), Art. XXVII Par. 4, Art. XXVIII Par. 4 · IUEC Constitution and By-Laws (2021), iuec.org. Invocation documents: github.com/Bluescontact/building-9980-account. A lay summary, not legal advice.